

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402070	GONZALES vs FRESH UP, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Appearances requested to discuss whether moving parties have shown the existence of an agreement to arbitrate. Where, as here, the document is allegedly signed electronically, the opposing party may create a factual dispute by stating that the party does not recall signing the document. *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, *Iyere v. Wise Auto Group, Inc.* (2023) 87 Cal.App.5th 747. The evidence submitted by defendants fails to show that plaintiff, and only plaintiff, could have signed the document. The Aguilon declaration states only describes how the onboarding process is supposed to work. Aguilon states that an email was sent to plaintiff and that he executed the documents and uploaded them but does not explain how Aguilon knows that this occurred and that the system worked as she describes it.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502391	HERNANDEZ vs M.B. FAST FOODS, INC.	DEFENDANTS ISHA SAIFIE AND MARYAM SAFIE'S RESPONSE RENEWED NOTICE OF MOTION TO VACATE/SET ASIDE ENTRY OF DEFAULT

Tentative Ruling:

Denied; motion is a renewed motion and fails to comply with *California Code of Civil Procedure* § 1008. Instead, it argues the merits of the defense to the case, that defendants Isha Safie and Maryam Saifie are not liable.

3.

CASE #	CASE NAME	HEARING NAME
RIC2002687	BOREL vs SOUTHERN CALIFORNIA GAS COMPANY	JOINDER IN SOUTHERN CALIFORNIA GAS COMPANY'S MOTION TO DISQUALIFY WITH SANCTION; OR IN THE ALTERNATIVE MOTION TO COMPEL

Tentative Ruling:

See related tentative ruling.